

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, JUNE 2, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, June 2, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, June 1, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0081949 Brewer Road Partners v. Storer, Jeremiah M

The motion to vacate or set aside void judgment is continued to **June 23, 2026 at 8:30 a.m. in Department 42** to be heard by the **Honorable Colleen M. Nichols**.

2. M-CV-0087179 JPMorgan Chase Bank NA v. Pluciennik, Tiffany N

Motion to Enforce Settlement

Plaintiff moves to enforce the settlement agreement filed on October 10, 2024 pursuant to Code of Civil Procedure section 664.6. The notice of motion shows a hearing date of both June 2, 2026 (in the first paragraph of the body of the notice of motion) and June 21, 2026 (in the case caption on the same page). The proof of service of motion filed April 17, 2026 is not signed by the declarant nor does it list a date of service. Moreover, there is no evidence in the court's file this motion was served on defendant's counsel of record, the Fullman Firm, PC. Based on these procedural deficiencies, the motion is denied without prejudice.

3. **M-CV-0087555 Philadelphia Indemnity Ins. Co. v. Lewis, Deann**

Moving parties are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Release Interpled Funds

Defendants and cross-complainants ("moving parties") Jennifer Flippen-Black and Justin Black move for release of interpled funds. More specifically, moving parties request an order releasing \$25,000 the surety deposited with the court pursuant to this court's October 14, 2025 order. Moving parties ask that \$15,000 of the funds be released to them and that \$10,000 be released to defendant Deann Lewis.

The motion is denied without prejudice as premature. Moving parties' cross-complaint filed September 4, 2024 includes enforcement of claims on contractor's license bonds against several cross-defendants including Jimmy Joseph Gloria. After this motion was filed but prior to the hearing on the motion, the court ordered Angie Brown substituted in as the personal representative of cross-defendant Jimmy Joseph Gloria. There is no evidence this substituted cross-defendant has been served nor has this cross-defendant been dismissed or defaulted. This motion for release of interpled funds effectively seeks final determination of at least one cause of action without notice to one of the parties. The motion is therefore denied without prejudice as it is premature.

4. **M-CV-0092997 Natl. Default Serv. Corp. v. Claimants to Surplus Funds**

Evidentiary Hearing Regarding Claims for Surplus Funds

All claimants to surplus funds from the trustee's sale of real property known as 20308 Paoli Lane, Weimar, California 95736 is required to appear in court on **June 2, 2026 at 8:30 a.m. in Department 42.**

5. **M-CV-0093623 Sunbelt Rentals v. Timothy P Hansen**

Defendants are advised the notice of motion must include notice of the court's current tentative ruling procedures. (Local Rule 20.2.3(C).) While the notice of motion includes a "Notice of Tentative Ruling System," it uses outdated language.

Motion to Set Aside Default

Defendants Timothy P. Hansen and Cheryl L. Hansen, individually and as trustees to the Timothy P. Hansen and Cheryl L. Hansen Revocable Trust dated 8-10-2021 ("moving defendants") move to set aside default entered against them on November 19, 2025. There is no evidence moving defendants served the motion on defendant Diego Ibarra.

The court, on its own motion, continues the motion to set aside default to **June 23, 2026 at 8:30 a.m. in Department 42.** Moving defendants are directed to serve this motion on

defendant Diego Ibarra, file and serve on all parties a notice of continued hearing including this order, and file proofs of service by June 9, 2026.

6. S-CV-0044479 Placer Union H.S. Dist. v. Auburn Renewables

Motion to Dismiss

Defendants ESP School Fund, Inc., Energy Saving Pros, Energy Saving Pros Construction, Inc., and Brian Pierce move to dismiss the action against them on the basis that plaintiff failed to bring the action to trial within five years pursuant to Code of Civil Procedure sections 583.310 and 583.360. Moving defendants also seek an order that they are the prevailing parties as to plaintiff. A review of the court's file reveals plaintiff dismissed the moving defendants on December 11, 2025, over one month before this motion was filed. While defendants acknowledge the December 11, 2025 dismissal, they argue the voluntary dismissal was ineffective because the five-year period had already elapsed and they are entitled to mandatory dismissal under Code of Civil Procedure section 583.360. However, defendants did nothing to enforce the five-year statute until after dismissal had already occurred.

Accordingly, this motion to dismiss is denied as moot and the court does not determine moving defendants to be prevailing parties.

7. S-CV-0051379 Nayeri, Parvin v. Regents of the Univ. of Cal.

Defendants' motion for summary judgment or, in the alternative, summary adjudication is dropped from calendar as moot in light of the full dismissal with prejudice filed May 28, 2026.

8. S-CV-0052071 Mustain, William v. Johnson, Richard Wayne

If oral argument is requested, it will be heard in Department 42 at **8:30 a.m.** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval

Plaintiff moves for an order finally approving the parties' class action and PAGA action settlement. No opposition has been filed. All moving papers and supporting papers shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) This motion is supported by insufficient notice.

The court on its own motion continues the motion for final approval to be heard on **June 23, 2026 at 8:30 a.m. in Department 42**. By June 5, 2026, plaintiff shall file and serve a notice of continued hearing on all parties.

9. S-CV-0054031 Temple, Georgette v. Rothlisberger, Brian

Plaintiff Georgette Temple (“Plaintiff”) filed this action against Defendants Brian Rothlisberger, M.D. (“Dr. Rothlisberger” or “Moving Defendant”), Gabriel Jacob, M.D. (“Dr. Jacob”), and Neha Dang, M.D. (“Dr. Dang”) (collectively “Defendants”) alleging a single claim for general negligence. Plaintiff asserts that Defendants negligently failed to recognize and timely respond to signs of Plaquenil retinal toxicity during Plaintiff’s long term treatment with the medication Plaquenil (hydroxychloroquine). Plaintiff took Plaquenil to treat systemic lupus erythematosus for approximately 20 to 30 years. Plaintiff alleges that the drug is known to cause eye damage and that Defendants failed to discontinue the medication despite Plaintiff’s repeated complaints of progressive vision loss, blurry vision, impaired color perception, flashes, and other visual symptoms, ultimately resulting permanent retinal injury and legal blindness.

Defendants deny Plaintiff’s claims. Plaintiff filed this action on November 14, 2024, and amended her complaint on December 27, 2024. On or about April 25, 2026 Plaintiff dismissed Dr. Dang with prejudice from this action. On April 29, 2026 Dr. Rothlisberger moved for summary judgment, or in the alternative, summary adjudication (“Motion”) on Plaintiff’s claim against him. Plaintiff opposes the Motion.

Evidentiary Objections

Defendant submits various objections to the Declarations of Todd Lefkowitz, M.D., Georgette Temple, and Mark Ravis.

As to the Declaration of Todd Lefkowitz, M.D., the court overrules Defendant’s general objections to the declaration and denies Defendant’s request to strike it in its entirety. The court notes that on May 11, 2026, Plaintiff submitted a copy of a portion of Moving Defendant’s deposition. In addition, the court overrules Specific Objection Nos. 1 through 3, and 5 through 8. The court overrules in part and sustains in part Specific Objection Nos. 4 and 9. Specifically, the court sustains in part:

- Specific Objection No. 6 only as to hearsay dependent statements regarding third party assistance organizing Plaintiff’s clothing to the extent those statements are offered for the truth of the matter asserted rather than as evidence of Plaintiff’s subjective perception or functional limitations; and
- Specific Objection No. 9 only to the extent the Declaration broadly references alleged conduct without specifying which conduct is specifically attributable to Defendant Rothlisberger.

As to the Declaration of Georgette Temple, the court overrules General Objection, and overrules Specific Objection Nos. 1, 3, 5, and 7. The court also overrules in part and

sustains in part Specific Objections Nos. 2, 4, 6, and 8 through 9. Specifically, the court sustains in part:

- Specific Objection No. 2 only to the extent Plaintiff purports to opine that the falls were caused by retinal toxicity or deteriorating eyesight, as Plaintiff is not a qualified expert to render medical causation opinions;
- Specific Objection No. 4 only as to hearsay dependent statements concerning the fiancé's daughter organizing Plaintiff's clothing by color insofar as it is offered for the truth of the matter asserted, but the court notes it may consider the statement for the limited purpose of explaining Plaintiff's functional limitations and perception of worsening color vision;
- Specific Objection No. 6 only to the extent Plaintiff attempts to attribute those symptoms to a specific medical diagnosis or offer expert medical causation opinions, and the court notes that the testimony that Dr. Rothlisberger allegedly did not personally examine Plaintiff in September 2021 goes to weight rather than admissibility;
- Special Objection No. 8 only to the extent that Plaintiff attempts to imply medical negligence solely from the absence of a Plaquenil toxicity diagnosis or to offer expert opinions regarding the adequacy of treatment; and
- Special Objection No. 9 only as to speculate assertions concerning what Defendants "knew" regarding Plaquenil toxicity or any implied medical conclusions beyond Plaintiff's knowledge.

As to the Declaration of Mark Ravis, the court overrules the General Objections, and notes that Plaintiff subsequently filed an authenticated excerpt of Dr. Rothlisberger's deposition testimony as soon as the transcript was made available. The court overrules in part and sustains in part Specific Objection No. 1. The court sustains the objection to Specific Objection No. 1 only to the extent the declaration itself purports to offer medical or expert conclusions regarding the significance of the OCT testing, cataracts, or retinal evaluation methodology.

Legal background

Summary judgment is appropriate if "all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Cal. Code Civ. P. ("CCP") § 437c(c).) The court must "consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence." (*Ibid.*) Critically, "summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (*Ibid.*)

"When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence." (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 607, quoting *Munro v. Regents University*

of California (1989) 215 Cal.App.3d 977, 9840-985; see also, *Powell v. Kleinman* (2007) 151 Cal.App.4th 112, 123.) Both the standard of care and causation “must normally be established by expert testimony in a medical malpractice case.” (*Hulbert v. Cross* (2021) 65 Cal.App.5th 405, 416, quoting *Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.) The standard of care is a matter “peculiarly within the knowledge of experts” and “can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson’s knowledge.” (*Hanson, supra*, 76 Cal.App.4th at p. 607 (quoting *Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 1001); *San Antonio Regional Hospital v. Superior Court* (2024) 102 Cal.App.5th 346, 350.)

When experts dispute causation or standard of care, summary judgment must be denied. (*Hanson, supra*, 76 Cal.App.4th 601 (holding that patient’s expert’s declaration submitted was adequate to create triable fact issues on breach of duty and causation, precluding summary judgment for surgeons); *Tortorella v. Castro* (2006) 140 Cal.App.4th 1 (emphasizing that expert declarations must be construed liberally in favor of the party opposing summary judgment.))

The defendant moving for summary judgment bears the initial burden of producing expert evidence that conduct met the standard of care and did not cause plaintiff’s injuries. (*Zaragoza v. Adam* (2025) 109 Cal.App.5th 113,) Once the defendant meets this burden, it shifts to the plaintiff to present “conflicting expert evidence.” (*Powell, supra*, 151 Cal.App.4th at 123.) If the plaintiff produces a competing expert declaration opinion that the defendant breached the standard of care or that the breach caused injury, a triable issue of material fact exists. (*Jameson v. Desta* (2013) 215 Cal.App.4th 1144, 1149.)

Discussion

Here, Plaintiff alleges Moving Defendant negligently failed to timely recognize Plaquenil retinal toxicity and discontinue Plaintiff’s long term Plaquenil therapy, resulting in progressive and irreversible vision loss.

Moving Defendant presented evidence through expert ophthalmologist Dr. David Mark that Dr. Rothlisberger’s treatment complied with the applicable standard of care at all times. (Mark Dec. at ¶¶ 7, 11-12.) Dr. Mark opines Plaintiff’s examinations, OCT imaging, visual field testing, follow-up recommendations, and referrals were appropriate and that no act or omission by the Moving Defendant caused Plaintiff’s injuries. (*Id.* at ¶¶ A-E, 12.) In particular, Dr. Mark states that Plaintiff’s June 2013, March 2019, July 2019, January 2021, and April 2021 examinations did not reveal Plaquenil maculopathy and that the Moving Defendant appropriately monitored Plaintiff’s condition through OCT imaging, visual field testing, and follow up screening. (*Id.* ¶¶ A-E.)

The court finds that while Dr. Mark’s Declaration alone appears to satisfy the Moving Defendant’s initial burden under CCP section 437c, Plaintiff has also met her burden by presenting conflicting expert evidence.

Plaintiff submits the declaration of ophthalmologist Dr. Todd Lefkowitz, who opines that Plaintiff exhibited progressive symptoms highly suggestive of Plaquenil retinal toxicity years before the medication was discontinued in 2023. (Lefkowitz Dec. ¶¶ 6, 8-16.) Plaintiff's own declaration similarly describes worsening blurry vision, difficult reading signs and television text, impaired color perception, severe light sensitivity, inability to drive, falls, and worsening depth perception. (Temple Dec. ¶¶ 3-14.)

Dr. Lefkowitz further opines that, in a patient with significant cataracts, reliance solely upon OCT imaging and structural retinal testing was inadequate because cataracts may obscure or interfere with retinal visualization. (*Id.* at ¶¶ 6, 10, 14.) According to Dr. Lefkowitz, the standard of care required additional functional retinal testing, including Multifocal Electroretinography testing, and discontinuation of Plaquenil despite the absence of visible structural retinal changes. (*Id.* at ¶¶ 6, 10, 14-16.)

Some of Dr. Lefkowitz's opinions appear to be supported by the contemporaneous medical records which document Plaintiff's repeated complaints of blurred vision, worsening visual symptoms, long-term Plaquenil use, decreased color vision testing, and cataracts. (*Id.* at ¶¶ 8-13.) The January 2021 records specifically note reduced color testing and "blurring" attributable to cataracts. (Lefkowitz Dec. ¶ 9, see also, Rothlisberger Evidence of Exhibits at Ex. B at p. 92.) The April 2021 records further document worsening blurry vision. (Lefkowitz Dec. ¶ 10, Rothlisberger Evidence of Exhibits at Ex. B at p. 101.) Plaintiff's declaration also describes progressively worsening visual symptoms throughout this period. (Temple Dec. ¶¶ 3-14.)

Although the Moving Defendant disputes the significance of these findings and offers competing expert testimony, Plaintiff's expert opinions are sufficient to create triable issues of material fact.

It is noted that the Moving Defendant argues that Plaintiff improperly relies on unpled theories concerning medical assistants and inadequate history taking. The court agrees Plaintiff cannot expand the scope of the pleadings through opposition papers. (*Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 649.) Accordingly, the court does not treat generalized office staffing criticisms or the alleged charting deficiencies as independent negligence theories.

Nevertheless, even excluding those collateral theories, Plaintiff still presents substantial expert evidence directly supporting the pleaded claim that Dr. Rothlisberger negligently failed to discontinue Plaquenil and failed to adequately evaluate symptoms suggestive of retinal toxicity. (Lefkowitz Dec. ¶¶ 6, 8-16.)

To the extent the Moving Defendant argues Plaintiff improperly conflates treatment rendered by Drs. Dang and Jacobs with treatment rendered by Dr. Rothlisberger, the court agrees the evidence must be evaluated specifically as to Dr. Rothlisberger. The record, however, reflects Dr. Rothlisberger personally examined Plaintiff on multiple occasions during the relevant period, documented Plaintiff's visual complaints, monitored her long-term Plaquenil use, and participated in ophthalmologic decision-

making central to Plaintiff's theory of liability. (Mark Dec. ¶¶ B-E; Lefkowitz Dec. ¶¶ 8-16.)

Thus, the court cannot conclude as a matter of law at this time that Plaintiff's evidence fails to create a triable issue regarding the Moving Defendant's own conduct. Here, it appears that the parties' experts fundamentally disagree regarding whether Plaintiff's escalating symptoms required discontinuation of Plaquenil before structural retinal changes became visible through OCT imaging. (Mark Dec. ¶¶ B-E, 12; Lefkowitz Dec. ¶¶ 6, 8-16.) The experts further disagree regarding whether Dr. Rothlisberger's diagnostic approach was adequate in the presence of cataracts and whether earlier intervention would have altered Plaintiff's outcome. (Mark Dec. 12; Lefkowitz Dec. ¶¶ 10, 14-16.)

These are factual disputes for resolution at trial rather than by summary judgment. The court is not permitted at this stage to weigh the credibility of competing experts or determine which medical interpretation is more persuasive. (*Hansen, supra*, 76 Cal.App.4th at 607.) Accordingly, there are triable issues regarding breach of the standard of care and causation that preclude summary judgment at this time.

Therefore, the Motion is denied and the alternative request for summary adjudication is likewise denied. The court finds that triable issues of material fact exist regarding whether the moving Defendant's monitoring and evaluation of Plaintiff's long term Plaquenil use complied with the applicable standard of care; whether the Moving Defendant's reasonably relied upon OCT and structural retinal testing despite Plaintiff's cataracts and progressive symptoms; whether Plaintiff's symptoms required discontinuation of Plaquenil before 2023; and whether earlier discontinuation or additional retinal testing would have prevented or reduced Plaintiff's alleged vision loss.

10. S-CV-0054299 Gomez, Hector Ortega v. Entrussed

If oral argument is requested, it will be heard in Department 42 by the **Honorable Trisha J. Hirashima**.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action and PAGA settlement. No opposition has been filed.

As part of the court's review of whether preliminary approval of a settlement is appropriate, the court reviews the release of claims to ensure it is not overbroad and is tied to the operative complaint and the Labor Code section 2699.3 notice to the LWDA. Here, plaintiff did not provide a copy of the Section 2699.3 notice to the LWDA so the court has been unable to review it.

The court on its own motion continues the motion for preliminary approval to be heard on **June 30, 2026 at 8:30 a.m. in Department 42**. By June 9, 2026, plaintiff is directed to file and serve on all parties (1) notice of continued hearing and (2) a copy of the Section 3699.3 notice to the LWDA.

11. S-CV-0055273 Kapitrus Servicing v. Ultimate Low Voltage

Judgment creditor is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Assignment Order

Judgment creditor moves for a court order directing judgment debtors Ultimate Low Voltage, Inc. dba Ultimate Low Voltage and Jon Fenton to assign to the judgment creditor all or part of a right of payment due and an order restraining assignment of payments due within the meaning of Code of Civil Procedure sections 708.510 and 708.520. No opposition has been filed.

Judgment creditor filed an application for entry of judgment on a September 13, 2023 Virginia judgment in the current amount of \$80,720.42. The Placer County Clerk entered the sister-state judgment on May 21, 2025. Judgment creditor filed proofs of service on June 9, 2025 purporting to show service of the sister-state judgment. However, there is insufficient evidence of proper service of the sister-state judgment as to judgment debtor Ultimate Low Voltage as no agent for service of process or designated officer of the corporation is listed on the proof of service. Notice of entry of judgment shall be promptly served on judgment debtor in the same manner as provided for service of summons. (Code Civ. Proc., § 1710.30, subd. (a).) "A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods: (a) To the person designated as agent for service of process" or to a designated officer of the corporation. (Code Civ. Proc., § 416.10, subds. (a), (b).) The proof of service provides insufficient evidence of effective service of the sister-state judgment.

As to judgment debtor Jon Fenton, the proof of service filed June 9, 2025 shows service by substitution pursuant to Code of Civil Procedure section 415.20(b). However, no declaration of diligence is provided in support of substitute service, as required by Section 415.20(b). It appears this judgment debtor may have been served pursuant to Code of Civil Procedure section 415.20(c), but this subdivision is not included on the June 9, 2025 proof of service.

Moreover, in addition to service of the judgment, the judgment creditor is required to provide notice "in a form prescribed by the Judicial Council and shall inform the judgment debtor that the judgment debtor has 30 days within which to make a motion to vacate the judgment." (Code Civ. Proc., § 1710.30, subd. (a).) There is no evidence in the court's file showing judgment debtors were served with this language. There is no form

EJ-110 in the court's file. Without service of this language, the 30-day period during which a judgment debtor may move to set aside the judgment has not yet been triggered.

Due to these procedural deficiencies, the motion is denied without prejudice.

Also, even if the court could reach the merits, which it cannot, the court observes the declaration of counsel Fisher submitted in support of this motion is signed and dated December 12, 2026, a date approximately six months into the future.

12. S-CV-0055751 Hebert, Rebecca M. v. Jessup, Luke Christopher

If oral argument is requested, it will be heard in Department 42 by the Honorable Trisha J. Hirashima. Department 42 is located at **10820 Justice Center Drive, Roseville, California 95678.**

Motion for Leave to File a First Amended Answer

Defendant's unopposed motion for leave to file a first amended answer is granted. (Code Civ. Proc., § 473, subd. (a).) Defendant shall file and serve his first amended answer by June 12, 2026.

13. S-CV-0055953 Safe Nation Found. v. Wildlife Heritage Found.

Defendant is advised that the notice of demurrer and motion to strike must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the Complaint

Plaintiff Safe National Foundation, a California Benefit Corporation (formerly Steelheart International Foundation) ("Plaintiff") alleges that Defendant Wildlife Heritage Foundation, a California Public Benefit Corporation ("Defendant") improperly interfered with Plaintiff's efforts to transfer or sell Sustainable Groundwater Management Act ("SGMA") allocations associated with property subject to a conservation easement ("Conservation Easement") by delaying approval and imposing conditions allegedly unrelated to conservation purposes. Plaintiff further alleges the allocations are regulatory extraction allowances, different from traditional groundwater rights and, therefore, either fall outside the Conservation Easement or are subject to approval authority that must be exercised reasonably and in furtherance of the Easement's conservation objectives. Defendant contends the Conservation Easement unambiguously grants it broad discretionary authority over transfers affecting groundwater-related interests, including SGMA groundwater allocations and that Plaintiff's claims fail because Defendant merely exercised its expressed rights granted under the Conservation Easement.

On or about January 20, 2026, Defendant demurred as to the **First** (Breach of Contract), **Second** (Breach of Implied Covenant of Good Faith and Fair Dealing), **Third** (Intentional Interference with a Prospective Economic Advantage), **Fourth** (Unfair

Competition), **Fifth** (Declaratory Relief), and **Sixth** (Injunctive Relief) causes of action on the grounds that the First Amended Complaint (“FAC”) fails to state sufficient facts in support of these causes of action. Defendant also filed a Motion to Strike portions of the FAC, including Paragraph 68 of the FAC, and Paragraph 2 of the Prayer for Relief seeking punitive damages. Plaintiff opposes both the Demurrer and Motion to Strike.

Objections

The court notes that after Defendant filed its Reply, Plaintiff filed a limited objection to new arguments raised for the first time in the reply brief in support of the Demurrer, and a limited objection to new arguments and factual premises raised for the first time in the reply brief. The objections are sustained. To the extent Defendant’s reply asserts a new theory that the FAC fails to plead mutual assent or consideration, the court does not rely on that argument in ruling on the Demurrer. Similarly, the court does not rely on factual characterizations asserted for the first time in the reply on the Motion to Strike concerning the capacity in which the proposed release was requested.

Legal Background

A demurrer tests the pleadings alone and not the evidence or other extrinsic matters, therefore, a demurrer analysis considers only those defects which appear on the face of the pleading or are judicially noticed. (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) When considering demurrers, courts assume the truth of the facts alleged in the pleading, as well as those that are judicially noticeable, and read the allegations liberally and in context. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Howard Jarvis Taxpayers Assn. v. City of La Habra* (2001) 25 Cal.4th 809, 814.)

When a written contract is attached to and incorporated into a complaint, a general demurrer admits not only the contents of the instrument, but also any pleaded meaning to which the instrument is reasonably susceptible. (*Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232, 239; *Barroso v. Ocwen Loan Servicing, LLC* (2012) 208 Cal.App.4th 1001, 1008 (noting that “a court will construe the language of the contract on its face to determine whether, as a matter of law, the contract is reasonably subject to a construction sufficient to sustain a cause of action for breach.”)) Courts can resolve unambiguous contract interpretation issues on demurrer as questions of law, but they cannot determine a document’s meaning through judicial notice alone and must accept reasonable plaintiff interpretations of ambiguous language. (*Ibid.*)

The rule on demurrer is “a variation on the well-recognized theme that is solely a judicial function to interpret a written instrument unless the interpretation turns upon the credibility of extrinsic evidence.” (*Id.* at 1008-1009.) Where a pleaded instrument is “susceptible of more than one construction as to its nature or as to the purpose intended by the parties to be attained by it, the construction of the party pleading it should be accepted, if such construction is reasonable” when considering whether a pleading attacked by general demurrer. (*Connell v. Zaid* (1969) 268 Cal.App.2d 788, 794.) Courts

must accept as correct plaintiff's allegations as to the meaning of an agreement, so long as the pleading does not place a clearly erroneous construction upon the provisions of the contract. (*Aragon-Haas, supra*, 231 Cal.App.3d at p. 238.)

While leave to amend may be granted to cure any defects in the pleading, the burden rests upon the plaintiff of "proving that an amendment would cure the defect." (*Schifando, supra*, 31 Cal.4th at p. 1081; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Discussion

The Conservation Easement broadly regulates groundwater rights and groundwater-related interests, prohibits abandonment, relinquishment, or changes in groundwater use without Defendant's consent, requires groundwater rights to remain appurtenant to the Easement Area, and grants the Defendant's "sole discretion" regarding approval determinations. (FAC at Ex. A, ¶¶ 2(b), 4(b), and 14(k).) The SGMA groundwater allocations appear to be a relatively recent regulatory mechanism not expressly addressed in the Conservation Easement. Accordingly, the court cannot conclude at this stage of the pleadings that the Conservation Easement application to the SGMA allocations is entirely unambiguous as a matter of law. Therefore the Court rules as follows:

As to the **First Cause of Action for Breach of Contract**, Plaintiff alleges the Defendant breached the Conservation Easement by unreasonably delaying approval of the groundwater-allocation transfers and imposing conditions allegedly unrelated to conservation purposes despite favorable expert findings. (FAC ¶¶ 39-49.) The court finds that the FAC does not adequately identify a specific enforceable provision of the Conservation Easement that the Defendant violated. The Conservation Easement appears to expressly grant Defendant broad discretionary approval authority, and California law generally prohibits implying duties that negate express discretionary rights. (See *Third Story Music, Inc. v. Waits* (1995) 41 Cal.App.4th 798, 808; *Wolf v. Walt Disney Pictures & Television* (2008) 162 Cal.App.4th 1107, 1120-1121.) The court sustains the demurer as the First Cause of Action with leave to amend.

As to the **Second Cause of Action for Breach of Implied Covenant**, Plaintiff alleges Defendant exercised discretionary approval authority in bad faith and for reasons unrelated to the conservation objectives set forth in the Conservation Easement. (FAC ¶¶ 50-59.) The court finds that the implied covenant cannot contradict express grants of discretion. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 349-350.) The Conservation Easement clearly states that Defendant may "withhold approval in its sole discretion[.]" (Conservation Easement ¶ 14(k).) The court sustains the demurrer as to the Second Cause of Action with leave to amend.

As to the **Third Cause of Action for Intentional Interference with a Prospective Economic Advantage**, Plaintiff alleges Defendant intentionally interfered with anticipated groundwater-allocation sales by withholding approval and imposing commercially destructive conditions that caused prospective transactions to collapse. (FAC ¶¶ 60-68.) Plaintiff fails to adequately plead independently wrongful conduct

separate from Defendant's exercise of discretion under the Conservation Easement. While Plaintiff cites to *Kendall v. Ernest Pestana, Inc.* (1985) 40 Cal.3d 488, Plaintiff identifies no authority that extends *Kendall* to conservation easements expressly granting discretionary approval rights. The court sustains the demurrer as to the Third Cause of Action with leave to amend.

As to the **Fourth Cause of Action for Unfair Competition**, Plaintiff alleges Defendant engaged in unlawful and unfair business practices by obstructing SGMA-authorized groundwater-allocation transfer through arbitrary delay and burdensome approval conditions. (FAC ¶¶ 69-75.) This claim is largely derivative of the contract and interference claims. Further, the FAC does not presently allege conduct sufficient to constitute "unlawful" or "unfair" business practices under Business and Professions Code section 17200. Allegations of delay and commercially burdensome conditions, without more, do not rise to conduct deemed "immoral, unethical, oppressive, unscrupulous, or substantially injurious" sufficient to constitute an unfair business practice. (*Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 680.) The court sustains the demurrer as to the Fourth Cause of Action with leave to amend.

As to the **Fifth Cause of Action for Declaratory Relief- Code of Civil Procedure § 1060**, Plaintiff seeks a declaration regarding whether SGMA groundwater allocations fall within the Conservation Easement and whether the Defendant's approval authority is constrained by conservation-based purposes or other limitations. (FAC ¶¶ 76-82.) The FAC adequately pleads an actual controversy concerning whether SGMA groundwater allocations fall within the Conservation Easement and whether the Defendant's approval authority is constrained by conservation-based purposes or other limitations. At this stage, the court cannot conclude that the Conservation Easement application to SGMA groundwater allocations is so clear as to foreclose declaratory relief as a matter of law. The court overrules the demurrer as to the Fifth Cause of Action and finds that it is properly pled under the Code of Civil Procedure section 1060.

As to the **Sixth Cause of Action for Injunctive Relief**, Plaintiff seeks injunctive relief preventing Defendant from interfering with the proposed groundwater-allocation transfers. (FAC ¶¶ 83-90.) Injunctive relief is a remedy, not an independent cause of action. (*Granny Purps, Inc. v. County of Santa Cruz* (2020) 53 Cal.App.5th 1, 9.) Plaintiff appears to concede the same. While Plaintiff may seek injunctive relief through the prayer and any surviving substantive claims, the court sustains the demurrer as to the Sixth Cause of Action without leave to amend.

Based on the foregoing, the court sustains the demurrer as to the First, Second, Third, and Fourth Causes of Action with leave to amend, sustains the demurrer as to the Sixth Cause of Action without leave to amend, and overrules the demurrer as to the Fifth Cause of Action. Plaintiff shall file and serve any amended complaint on or before June 26, 2026.

Motion to Strike

Defendant also asks the Court to strike portions of the FAC seeking punitive damages.

A complaint including a request for punitive damages must include allegations showing that the plaintiff is entitled to an award of punitive damages. (*Caluson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) A claim for punitive damages cannot be pleaded generally and allegations that a defendant acted with “oppression, fraud and malice” toward plaintiff are insufficient legal conclusions to show that plaintiff is entitled to an award of punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Specific factual allegations are required to support a claim for punitive damages. (*Id.*) Civil Code section 3294 authorizes a plaintiff to obtain an award of punitive damages when there is clear and convincing evidence that the defendant engaged in malice, oppression, or fraud.

The challenged punitive damages allegations appear to be associated with the Third Cause of Action for Intentional Interference with a Prospective Economic Advantage, and to a lesser extent, the Fourth Cause of Action under the Unfair Competition Law. Both of these claims are rely on allegations that Defendant intentionally obstructed Plaintiff’s proposed SGMA groundwater-allocation transfers through delay, burdensome conditions, and alleged improper conduct unrelated to conservation purposes. Given the court’s ruling on the demurrer as to the Third and Fourth Causes of Action with leave to amend, the court declines to reach the merits of whether the FAC presently alleges facts sufficient to support punitive damages as the operative pleading will be superseded by amendment. Therefore, the Motion to Strike is denied as moot at this time.

14. S-CV-0056209 Reddy, Catherine v. Dismukes, Bret

If oral argument is requested, it will be heard in Department 42 by the **Honorable Trisha J. Hirashima**.

Defendants are advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Strike Punitive Damages

Defendants move to strike the prayer for punitive damages from plaintiff’s complaint. No opposition has been filed.

To support punitive damages, plaintiff must allege ultimate facts supporting a finding of oppression, fraud, or malice on defendant’s behalf. (Civ. Code, § 3294, subd. (a).) “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at subd. (c)(2).) “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (*Id.* at subd. (c)(3).) Here, a careful review of

the complaint reveals no facts supporting a finding of malice, oppression, or fraud against either defendant. The motion to strike is granted and paragraph 14(a)(2) is stricken in its entirety.

Plaintiff bears the burden of demonstrating how the complaint may be amended to cure the defects therein. (*Jensen v. The Home Depot, Inc.* (2018) 24 Cal.App.5th 92, 97.) As the motion is unopposed, plaintiff falls short of this burden. Accordingly, leave to amend is denied.

15. S-CV-0057201 Weber, Anne Marie v. Wells Fargo Bank NA
T-CV-0002801 Kern, Gregory v. Weber, Anne Marie

Moving parties are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Consolidate

Anne Marie Weber and Jon G. Jensen ("moving parties"), plaintiffs in S-CV-0057201 and defendants in T-CV-0002801, move to consolidate these two cases. The former is a wrongful foreclosure case brought by the moving parties against defendant Gregory Kern and four entity defendants (Wells Fargo Bank, N.A., Wilmington Savings Fund Society FSB, FCI Lender Services Inc., and Quality Loan Servicing Corporation) for claims of (1) wrongful foreclosure, (2) enforcement of rights under Civil Code section 2429m, (3) quiet title, and (4) declaratory relief. The latter is a post-foreclosure unlawful detainer action brought by Gregory Kern against Anne Marie Weber, Richard Finch, and by way of prejudgment claim of right to possession Jon G. Jensen. Kern opposes the motion to consolidate.

Preliminary Matters

Moving parties' request for judicial notice is granted.

Kern's request for judicial notice is granted as to exhibits B through K and denied as to exhibit A.

Gregory Kern filed an opposition on May 11, 2026 and then, without obtaining leave of court, filed a supplemental opposition on May 20, 2026. Seeing no objection from the moving parties, the court exercises its discretion to consider all briefing submitted in this matter.

Ruling on the Motion

The court may order consolidation of actions involving a common question of law or fact. (Code Civ. Proc., § 1048, subd. (a).) Here, both matters involve the same real property known as 249 Bend Avenue, Kings Beach, California 96143. The moving parties and Gregory Kern are parties in both actions. However, the four entity defendants

are parties only to the wrongful foreclosure action and Richard Finch is a party only to the unlawful detainer action. There are some common questions of fact. As to the legal issues, however, the issues raised in each case are distinct.

Moving parties argue consolidation is necessary to fully litigate title to the subject premises. “[T]itle issues generally cannot be raised in unlawful detainer actions. [Citation.]” (*Struiksmā v. Ocwen Loan Servicing, LLC* (2021) 66 Cal.App.5th 546, 554, citations omitted.) However, Kern argues that he purchased the real property for value at the trustee’s sale and is therefore a bona fide purchaser. Kern relies on *Morris v. JPMorgan Chase Bank NA* (2022) 78 Cal.App.5th 279 for the proposition that when a trustee’s deed recites all statutory notice requirements and procedures required by law, a rebuttable presumption arises that the sale has been conducted properly and that this presumption is conclusive to a bona fide purchaser in a post-foreclosure proceeding. Moreover, “No violation of this article shall affect the validity of a sale in favor of a bona fide purchaser and any of its encumbrances for value without notice” and violations of the Homeowners’ Bill of Rights after a foreclosure sale has already occurred permits money damages only. (Civ. Code, § 2924.12, subds. (b), (e).) While moving parties point to *In re Garcia* (9th Cir. BAP 2026) 676 B.R. 408 for the proposition that failure to comply with Civil Code section 2924m(c)(2)–(4) results in a foreclosure sale being rescinded, that case makes clear these procedures are only triggered if the highest bidder at the auction is not a “prospective owner-occupant,” as here. (Civ. Code, § 2924m, subd. (c)(1); *In re Garcia*, *supra* at p. 420.) Accordingly, complex issues of title that may justify consolidation in some cases, *Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, are not present between these two actions.

Based on the foregoing, while these two matters involve a few common issues of fact, they involve divergent legal issues. Consolidation is not appropriate in such cases, and the motion is, accordingly, denied.
